



CHAPTER xxxix.

An Act to confer further borrowing powers for the completion of the tunnel authorised by the Mersey Tunnel Acts 1925 to 1928 to increase the aggregate amount of tolls which may be collected in respect of the use of the tunnel and to extend the period of collection and for other purposes. A.D. 1933.
[18th July 1933.]

WHEREAS by the Mersey Tunnel Act 1925 the lord mayor aldermen and citizens of the city of Liverpool and the mayor aldermen and burgesses of the borough of Birkenhead (hereinafter respectively referred to as "the Liverpool Corporation" and "the Birkenhead Corporation" and collectively as "the Corporations") were authorised to construct a tunnel for vehicular and pedestrian traffic under the river Mersey between the city of Liverpool and the county borough of Birkenhead :

And whereas it was originally estimated that the cost of constructing the tunnel and other works authorised by the said Act of 1925 would amount to five million pounds and it was contemplated that one-half of the cost of the scheme should be contributed from the Road Fund and that the other half should be provided by moneys borrowed by the Liverpool Corporation for and on behalf of the Corporations or for and on behalf of the Joint Committee of the Corporations constituted by the said Act the interest on and sinking fund charges for the repayment of such moneys being provided in approximately

A.D. 1933. — equal parts by the revenue from tolls to be charged for the use of the tunnel and by the Corporations out of the local rates which it was estimated would not necessitate a higher annual rate than fourpence in the pound :

And whereas by the said Act of 1925 it was accordingly provided that the Minister of Transport would make a grant from the Road Fund towards the cost of constructing the works thereby authorised of not exceeding fifty per centum of the approved cost thereof or two million five hundred thousand pounds whichever be the less and the general conditions relating to the said grant are set forth in the First Schedule to the said Act and include a condition—

“ 2. In the event of difficulties of an engineering or similar character arising in connection with the construction of the said works involving an appreciable increase in the cost thereof beyond the original estimate the Minister will consider the question of making a further contribution from the Road Fund of not more than fifty per centum of any such increase ” :

And whereas by section 81 (Expenditure on revenue account) of the said Act of 1925 the amount required to be paid in any year by the Birkenhead Corporation towards the expenditure on revenue account in pursuance of that Act is limited to the amount produced by levying a borough rate of fourpence in the pound which by virtue of section 75 of the Local Government Act 1929 is increased by thirty-three and one-third per centum to a rate of five and one-third pence in the pound :

And whereas by the Mersey Tunnel Acts 1927 and 1928 alterations of the said tunnel were authorised thereby increasing the total estimated cost of the works to five million two hundred and twenty-two thousand pounds :

And whereas by the Act of 1925 the Liverpool Corporation were authorised to borrow for and on behalf of the Corporations or for and on behalf of the said Joint Committee the sum of two million five hundred thousand pounds for the purchase of lands and the construction of works and with the sanction of the Minister of Health such further moneys as might be necessary therefor under which provision the Liverpool Corporation have obtained

the sanction of the said Minister to borrow a further sum . A.D. 1933.
of five hundred thousand pounds : —

And whereas by the Mersey Tunnel Act 1927 the Birkenhead Corporation were authorised to borrow the sum of fifty-five thousand five hundred pounds as a contribution towards the cost of the alteration of the tunnel by that Act authorised :

And whereas by the said Acts of 1925 and 1927 it is provided that tolls may be collected in respect of the traffic using the tunnel until the expiration of a period not exceeding twenty-five years from the opening of the tunnel for public traffic or until the end of the financial year in which the aggregate amount of the tolls collected (after deducting the cost of collection) shall amount to one million five hundred thousand pounds whichever shall first happen :

And whereas owing to unforeseen difficulties of an engineering character beyond the control of the Corporations which have arisen in connection with the construction of the tunnel it is now estimated that the total cost of the construction of the works will exceed the said sum of five million two hundred and twenty-two thousand pounds by about one million eight hundred and fifty-five thousand eight hundred pounds thus creating a heavy additional financial burden not contemplated when the works were authorised :

And whereas having regard to the present economic situation the Minister of Transport has no resources from which an additional contribution could be made towards the increased cost of the works and owing to the inability of the said Minister to make a further contribution towards such increased cost it is necessary that the whole of the further moneys required for completing the tunnel should be borrowed by the Liverpool Corporation for and on behalf of the Corporations or for and on behalf of the said Joint Committee and that provision should be made for the interest on and sinking fund charges for the repayment of such further moneys :

And whereas in order to provide for such interest and sinking fund charges it is accordingly expedient that the aggregate amount of the said tolls and the period within which they may be collected should be increased and extended as provided by this Act :

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And whereas it is expedient that the provisions of this Act with respect to the application of the said tolls and the sums to be carried to the loans equalisation fund and with respect to the formation of renewals and reserve funds should be enacted :

And whereas it is expedient that provision should be made as in this Act contained with respect to the ferry undertaking of the Birkenhead Corporation and the officers and servants employed in connection therewith :

And whereas it is expedient that the Corporations should be empowered to construct a ventilation station in the city of Liverpool for the purposes of the tunnel and that the powers granted by the said Act of 1928 for the compulsory purchase of certain lands in the said city for the purposes of Work No. 5 authorised by that Act should be revived and extended as by this Act provided :

And whereas it is expedient that the other provisions contained in this Act should be made :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

And whereas a plan of the lands required or which may be used for the purposes of the said ventilation station and a book of reference to such plan containing the names of the owners or reputed owners and of the occupiers of such lands were duly deposited with the town clerk of the city of Liverpool which plan and book of reference are in this Act respectively referred to as the deposited plan and book of reference :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short and
collective
titles.

1. This Act may be cited as the Mersey Tunnel Act 1933 and the Mersey Tunnel Acts 1925 to 1928 and this Act may be together cited as the Mersey Tunnel Acts 1925 to 1933.

2. In this Act unless the subject or context otherwise requires the expressions—

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Interpreta-
tion.

“ the city ” means the city of Liverpool;

“ the Liverpool Corporation ” means the lord mayor aldermen and citizens of the city acting by the council of the city;

“ the Birkenhead Corporation ” means the mayor aldermen and burgesses of the county borough of Birkenhead acting by the council of that borough;

“ the Corporations ” means the Liverpool Corporation and the Birkenhead Corporation;

“ the Act of 1925 ” means the Mersey Tunnel Act 1925;

“ the Act of 1927 ” means the Mersey Tunnel Act 1927;

“ the Act of 1928 ” means the Mersey Tunnel Act 1928;

“ the tunnel ” means the tunnel and works authorised by the Mersey Tunnel Acts 1925 to 1933;

“ the Joint Committee ” means the Mersey Tunnel Joint Committee incorporated by the Act of 1925;

“ the Lands Clauses Acts ” means those Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 Provided that the Corporations and the Joint Committee shall be deemed to be a local or public authority within the meaning of the last-mentioned Act; and

“ statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of either of the Corporations.

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Incorporation of
Acts.

3. The Lands Clauses Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act. Provided that for the purposes of this Act the expression "the promoters of the undertaking" in the said Act shall be construed to mean the Corporations or the Joint Committee.

Power to
construct
ventilation
station.

4. Subject to the provisions of this Act the Corporations upon the lands in the city belonging to the Joint Committee and delineated on the deposited plan and described in the deposited book of reference being part of the premises formerly known as Bretherton's Buildings and then numbered 8 10 and 12 North John Street may (notwithstanding any covenant condition restriction or easement imposed or created by any deed or agreement or otherwise howsoever subsisting in respect of such lands) construct and maintain a ventilation station for the purposes of the tunnel with all necessary shafts apparatus plant and machinery.

For protection of
executors
of John
Johnson
Houghton
and others.

5. Notwithstanding anything contained in this Act the following provisions for the protection of the owners shall unless otherwise agreed in writing between the Corporations and the owners apply and have effect (that is to say):—

(1) In this section unless the subject or context otherwise requires—

"The protected premises" means the property numbered 256 in the city on the plans deposited with the clerk of the peace for the county of Lancaster in relation to the Bill for the Act of 1928 and includes all buildings cellars vaults works and conveniences forming part thereof or belonging thereto whether above or below ground;

"The owners" means James Edgar Gordon and Richard Johnson Houghton executors of the will of the late John Johnson Houghton the said Richard Johnson Houghton and Harold Ben Johnson Houghton executors of the will of the late James Gordon Houghton

John Harold Houghton and William Arnold Houghton executors of the will of the late Henry Johnson Houghton and Philip Arthur Houghton as executor of the will of the late William Cary Houghton and on his own behalf their successors and assigns as owners of the protected premises or any part thereof;

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“The ventilation station” means the ventilation station and the shafts apparatus plant and machinery authorised by this Act :

- (2) The owners shall be entitled to claim from and be paid by the Corporations compensation for injuriously affecting the protected premises (including injurious affection by reason of noise or vibration) by the exercise of the powers of this Act or the Acts incorporated therewith in the same manner and to the same extent as if the owners were owners of property part of which had been compulsorily acquired for the purpose of the ventilation station and such compensation shall in case of difference be ascertained and determined in the manner provided by the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 with respect to the purchase and taking of lands otherwise than by agreement.

6. Notwithstanding anything contained in this Act the following provisions for the protection of the lessees shall unless otherwise agreed in writing between the Corporations and the lessees apply and have effect (that is to say) :—

For protec-
tion of
J. Lyons and
Company
Limited.

- (1) In this section unless the subject or context otherwise requires—

“The protected premises” means the property numbered 256 in the city on the plans deposited with the clerk of the peace for the county of Lancaster in relation to the Bill for the Act of 1928 and includes all buildings cellars vaults works and conveniences forming part thereof or belonging thereto whether above or below ground;

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“The lessees” means J. Lyons and Company Limited their successors and assigns as lessees of the protected premises or any part thereof;

“The ventilation station” means the ventilation station and the shafts apparatus plant and machinery authorised by this Act :

- (2) The lessees and any person duly authorised by them shall at all reasonable times have free access to the ventilation station for the purpose of inspecting the same and every reasonable facility shall be afforded to them by the Corporations for that purpose :
- (3) If the construction of the ventilation station renders less efficient any of the flues vent-shafts and chimneys of the protected premises the Corporations shall to the reasonable satisfaction of the lessees build up or otherwise deal with such flues vent-shafts and chimneys in such manner as shall be reasonably practicable and necessary for rendering the same as efficient after as before the construction of the ventilation station and for preventing any down draught in such flues vent-shafts and chimneys and the lessees shall afford to the Corporations all reasonable facilities for enabling them to carry out the alterations required by this subsection :
- (4) The Corporations shall face with white glazed bricks or tiles so much of the ventilation station as immediately adjoins the light wells of the protected premises :
- (5) The lessees shall be entitled to claim from and be paid by the Corporations compensation for injuriously affecting the protected premises (including injurious affection by reason of noise or vibration) by the exercise of the powers of this Act or the Acts incorporated therewith in the same manner and to the same extent as if the lessees were lessees of property part of which had been compulsorily acquired for the purposes of the ventilation station and such compensation shall in case of difference be ascertained and

determined in the manner provided by the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 with respect to the purchase and taking of lands otherwise than by agreement. Provided that any claim under this subsection for injurious affection by reason of noise or vibration caused by the user of the ventilation station may be made from time to time but the lessees shall not be entitled to claim compensation more than once in respect of the same injury :

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- (6) Any question or difference which may arise between the Corporations and the lessees as to any matter under or arising out of the provisions of this section (other than any disputed question of compensation) shall be determined by a single arbitrator under and subject to the provisions of the Arbitration Act 1889 save that where the parties do not concur in the appointment of an arbitrator the Minister of Transport shall have the power of the court or a judge under section 5 of such last-mentioned Act.

7. The powers granted by the Act of 1928 for the compulsory purchase of the lands numbered on the plans deposited in respect of that Act 312 331 332 335 336 338 and 343 in the city are hereby revived and extended and may be exercised by the Corporations during a period of three years from the thirty-first day of October one thousand nine hundred and thirty-one but on the expiration of that period the powers for such compulsory purchase shall cease except so far as such powers shall then have been exercised.

Revival of powers for purchase of certain lands authorised to be acquired by Act of 1928.

8.—(1) Section 65 (Tolls) of the Act of 1925 as amended by section 25 (Amendment of Act of 1925 as to tolls) of the Act of 1927 shall be read and have effect as if “ forty years ” had been referred to therein in lieu of “ twenty-five years ” and as if the words “ the aggregate amount standing to the credit of the loans “ equalisation fund by this Act authorised shall amount “ to four million pounds ” were inserted therein in lieu of the words “ the aggregate amount of the tolls collected

Amendment of Acts of 1925 and 1927 as to tolls.

A.D. 1933. — “ by them in pursuance of this Act in respect of traffic
 “ using the tunnel (after deducting therefrom the amount
 “ of expenses incurred in and about such collection) shall
 “ amount to one million five hundred thousand pounds.”

(2) Paragraph 5 of the First Schedule to the Act of 1925 as amended by the said section 25 of the Act of 1927 shall be read and have effect as if “ 40 years ” had been referred to therein in lieu of “ 25 years ” and as if the words “ the aggregate amount standing to the credit of “ the loans equalisation fund by this Act authorised “ shall amount to £4,000,000 ” were inserted therein in lieu of the words “ the aggregate amount of tolls received “ in respect of traffic using the tunnel (after deducting “ the expenses of collection thereof) shall amount to “ £1,500,000.”

(3) The said section 25 of the Act of 1927 is hereby repealed.

Amend-
ment of
section 83 of
Act of 1925.

9. The Mersey Tunnel Acts 1925 to 1933 shall have effect as though the following section were substituted for section 83 (Application of tolls) of the Act of 1925 (namely):—

“ 83.—(1) At the end of each half-year of the period during which the tolls by this Act authorised to be collected shall continue to be collected there shall be transferred from the revenue account of the Joint Committee and carried to an account to be called the “ loans equalisation fund ”—

(a) a sum equal to the amount by which the said tolls received in such half-year shall exceed the sum of seventy-six thousand five hundred pounds after deducting from such amount the cost of collecting the said tolls and any sum set aside in that half-year and paid into any renewals fund which the Joint Committee may be required or authorised to provide; and

(b) a further sum equal to one and a half per centum (or such other percentage as from time to time may be approved by the Minister of Health) of the amount standing to the credit of the loans equalisation fund on the first day of such half-year :

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Provided that in any half-year in which the aggregate amount of such tolls collected shall exceed one hundred and ten thousand pounds the amount of such excess after deducting therefrom any sum set aside in that half-year and paid into any reserve fund which the Joint Committee may be required or authorised to provide may subject to the next following proviso be carried to and form part of the general rate fund of the city and the general rate fund of the borough respectively in the proportion which the amount which would be produced by a general rate of one penny in the pound in the city bears to the amount which would be produced by a general rate of one penny in the pound in the borough :

Provided however that no amount shall be carried to the said general rate funds in any half-year unless the amount then standing to the credit of the loans equalisation fund shall be not less than the amount which would have been provided by the transfer to the said fund of the sum of twenty-five thousand pounds at the end of each half-year during which such tolls shall have been collected and the accumulation of compound interest on the said sums at the rate of three per centum per annum or such other rate as may be approved by the Minister of Health.

(2) From and after the end of the period during which the tolls by this Act authorised are collected there shall be transferred from and out of the moneys in the loans equalisation fund to the revenue account of the Joint Committee in each half-year such a sum as the Joint Committee at the expiration of the said period and of each succeeding period of ten years shall determine as the appropriate amount necessary to be paid half-yearly out of the said fund during the next succeeding period of ten years in order to provide for the exhaustion of the said fund during the remainder of the period prescribed for repayment of the loans raised for the purposes of the Mersey Tunnel Acts 1925 to 1933.

(3) The Joint Committee may lend to the Liverpool Corporation the moneys at any time

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standing to the credit of the loans equalisation fund and section 201 (Use of moneys forming part of sinking and other funds) of the Liverpool Corporation Act 1927 shall apply and have effect as if the Joint Committee were a lending fund and the moneys so lent were moneys used within the meaning of that section and so far as not so lent the moneys at any time standing to the credit of the loans equalisation fund shall from time to time be invested in statutory securities and the interest received in any half-year on the moneys so lent or invested shall be carried to and form part of the revenue account of the Joint Committee for that half-year.

(4) If the tunnel be opened for public traffic on a date other than the commencement of a financial half-year of the Joint Committee the provisions of subsection (1) of this section shall in respect of the period between the said date and the termination of the then current half-year have effect with such modifications as may be necessary to apply its provisions on a pro rata basis."

Renewals
fund.

10.—(1) The Joint Committee shall provide a renewals fund by setting aside in each half-year out of revenue such sum not being less than three thousand five hundred pounds as they may think fit until the fund so formed amounts to the sum of two hundred thousand pounds.

(2) The Joint Committee may lend to the Liverpool Corporation the moneys at any time standing to the credit of the said renewals fund and section 201 (Use of moneys forming part of sinking and other funds) of the Liverpool Corporation Act 1927 shall apply and have effect as if the Joint Committee were a lending fund and the moneys so lent were moneys used within the meaning of that section and so far as not so lent the moneys at any time standing to the credit of the renewals fund shall from time to time be invested in statutory securities and the interest received in any half-year on the moneys so lent or invested shall be carried to and form part of the revenue account of the Joint Committee for that half-year and the accounts

of the fund for that half-year shall be credited with an amount equivalent to the amount of such interest. A.D. 1933.

(3) The said renewals fund shall be applicable for payment of the cost of renewing improving or extending any part of the works forming part of the undertaking controlled by the Joint Committee and so that if the fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(4) Resort may be had to the said renewals fund although the fund may not at the time have reached or may have been reduced below the prescribed maximum.

11.—(1) The Joint Committee shall provide a reserve fund by setting aside in each half-year out of revenue such sum not being less than one thousand five hundred pounds as they may think fit until the fund so formed amounts to the sum of one hundred thousand pounds. Reserve fund.

(2) The Joint Committee may lend to the Liverpool Corporation the moneys at any time standing to the credit of the said reserve fund and section 201 (Use of moneys forming part of sinking and other funds) of the Liverpool Corporation Act 1927 shall apply and have effect as if the Joint Committee were a lending fund and the moneys so lent were moneys used within the meaning of that section and so far as not so lent the moneys at any time standing to the credit of the reserve fund shall from time to time be invested in statutory securities and the interest received in any half-year on the moneys so lent or invested shall be carried to and form part of the revenue account of the Joint Committee for that half-year and the accounts of the fund for that half-year shall be credited with an amount equivalent to the amount of such interest.

(3) The said reserve fund shall be applicable to meet any extraordinary claim or demand at any time arising against the Joint Committee or otherwise for the benefit of the undertaking controlled by the Joint Committee and so that if the fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

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(4) Resort may be had to the said reserve fund although the fund may not at the time have reached or may have been reduced below the prescribed maximum.

Power to
Liverpool
Corporation
to borrow
and repay-
ment of
borrowed
moneys.

12.—(1) The Liverpool Corporation for and on behalf of the Corporations or for and on behalf of the Joint Committee may (in addition to any moneys which they are now authorised to borrow or which they may hereafter be authorised to borrow) borrow at interest for the purposes set forth in the first column of the following table any sums not exceeding the respective sums set forth in the second column thereof and all moneys so borrowed shall be chargeable on the “revenues of the Corporation” as defined by the Liverpool Corporation Act 1921 and shall be repaid within the respective periods set forth in the third column thereof and any sum so borrowed may be applied for the said purposes respectively (that is to say):—

Purpose.	Amount.	Period for repayment.
(a) For paying the costs charges and expenses of this Act as hereinafter defined.	The sum requisite.	Five years from the passing of this Act.
(b) For the completion of the tunnel -	£1,522,300	Eighty years from the date or dates of borrowing.

(2) The Liverpool Corporation for and on behalf of the Corporations or for and on behalf of the Joint Committee may also with the sanction of the Minister of Health borrow such further moneys as may be necessary for any of the purposes of this Act and any moneys borrowed under the powers of this subsection shall be repaid within such periods not exceeding eighty years as may be prescribed by that Minister and the revenues chargeable for any moneys so borrowed shall be such as that Minister shall prescribe.

Suspension
of payments
into certain
sinking fund.

13. The Act of 1925 shall be read and have effect as if borrowed moneys for or in respect of the purpose (b) referred to in section 78 (Suspension of payments into certain sinking fund) of that Act included all moneys

borrowed by the Liverpool Corporation under or in pursuance of the Mersey Tunnel Acts 1925 to 1933 for or in respect of the purchase of lands and the construction of works thereby authorised. A.D. 1933.
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14. The unrepealed provisions of Part V (Finance) of the Act of 1925 as amended by this Act shall apply *mutatis mutandis* as if the purposes of this Act were purposes of the Act of 1925 and as if the borrowing powers authorised by this Act had been authorised by the Act of 1925. Application
of Part V
of Act of
1925.

15. The provisions of section 82 (Differential rating of certain railways and canals) of the Act of 1925 shall extend and apply in relation to the purposes of this Act as well as to the purposes of the Act of 1925 the Act of 1927 and the Act of 1928. Application
of provisions
as to
differential
rating.

16.—(1) The Birkenhead Corporation may by giving six months' notice to the Joint Committee expiring at the end of the period of twenty-one years referred to in section 63 (Birkenhead ferry undertaking to be worked under direction of Joint Committee) of the Act of 1925 require that the ferry undertaking or part thereof referred to in that section shall continue to be worked and managed by the said corporation for and on behalf of the Joint Committee in accordance with the provisions of that section for a further period of twenty-one years after the expiration of the said period and in the event of such notice being given the said section shall apply and have effect as if the period of forty-two years were substituted for the period of twenty-one years therein referred to. Provided that at any time during such further period of twenty-one years the Joint Committee may if they think fit on giving six months' notice to the Birkenhead Corporation from time to time require that corporation to discontinue alter or modify the ferry services provided in connection with the ferry undertaking or part thereof referred to in the said section. As to
working of
Birkenhead
ferry under-
taking.

(2) In the event of any such last-mentioned notice being given the Birkenhead Corporation unless they comply therewith shall as from the expiration of the

A.D. 1933. — period mentioned in such notice work and manage the said undertaking on their own behalf instead of for and on behalf of the Joint Committee and thereupon the said section 63 shall cease to have effect.

As to
officers and
servants
employed
in con-
nection with
Birkenhead
ferry under-
taking.

17.—(1) If within five years from the date of the commencement of working and management of the ferry undertaking of the Birkenhead Corporation or part thereof for and on behalf of the Joint Committee in pursuance of section 63 (Birkenhead ferry undertaking to be worked under direction of Joint Committee) of the Act of 1925 any officer or servant in the permanent employment of the Birkenhead Corporation who has prior to the passing of this Act been regularly and exclusively employed by the Birkenhead Corporation in or about the said undertaking or part thereof in consequence of such working and management suffers loss of employment or diminution of salary wages or emoluments otherwise than on grounds of misconduct incapacity or superannuation and the Joint Committee or the Birkenhead Corporation do not provide for him suitable employment on reasonable terms he shall be entitled to compensation for that loss or diminution from the Birkenhead Corporation.

(2) In determining the compensation payable to any person who becomes entitled to compensation in pursuance of this section regard shall be had to the conditions and circumstances mentioned in the Eighth Schedule to the Local Government Act 1929 and the compensation shall not exceed the limit therein mentioned and for the purposes of this section the said schedule shall with the necessary adaptations apply and have effect as if the expression "council" therein referred to meant the Joint Committee except where that expression occurs in paragraphs 6 and 15 of the said schedule and where it secondly and thirdly occurs in paragraph 12 thereof in which cases it shall mean the Birkenhead Corporation.

(3) Any compensation payable by the Birkenhead Corporation under this section shall be a charge against the revenue of the ferry undertaking and during the operation of the said section 63 of the Act of 1925 shall be deemed to be expenditure incurred by the Birkenhead

Corporation for and on behalf of the Joint Committee under the provisions of that section. A.D. 1933.

(4) No officer shall be entitled to receive compensation under this section for pecuniary loss and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss.

18. The powers of section 67 (Power to provide toll-houses &c.) of the Act of 1925 may be exercised at or upon any land from time to time owned by the Joint Committee or with the consent of the road authority concerned upon any portion of highway outside the limits of the tunnel and the approaches thereto. Further powers to provide toll-houses &c.

19. Section 48 (For protection of Liverpool Gas Company) of the Act of 1925 shall so far as applicable apply and have effect in relation to the exercise of the powers of the section of this Act of which the marginal note is "Further powers to provide toll-houses &c." as if the said section 48 were re-enacted in this Act with the substitution of "Joint Committee" for "Corporations" and as if anything done in pursuance of the said section of this Act were an "authorised work" within the meaning of the said section 48. For protection of Liverpool Gas Company.

20. Section 74 (Byelaws) of the Act of 1925 shall be read and have effect as if the words "either generally or during particular hours" were inserted in lieu of the words "at certain hours" in subsection (1) of that section. Amendment of section 74 of Act of 1925.

21. The powers conferred by this Act upon the Corporations shall be exercised for them and on their behalf by the Joint Committee. Powers conferred upon Corporations to be exercised by Joint Committee.

22. The Liverpool Corporation or the Birkenhead Corporation shall not earlier than in the session of 1939 and not later than in the session of 1942 promote a Bill in Parliament proposing or affording an opportunity for a revision by such Bill of the provisions of the sections of this Act of which the marginal notes are "Amendment of Acts of 1925 and 1927 as to tolls" "Amendment of section 83 of Act of 1925" and "Renewals fund." As to promotion of future Bill.

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Costs of
Act.

23. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Joint Committee out of moneys to be borrowed by the Liverpool Corporation for the purposes of this Act.

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